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IN THE HIGH COURT OF JUDICATURE AT MADRAS

RESERVED ON : 07.07.2026
PRONOUNCED ON : 09.10.2026

CORAM:

THE HONOURABLE DR. JUSTICE A.D. MARIA CLETE

T.O.S. No. 12 of 2015

C.Dhanalakshmi,
Wife of J.Chandrasekar,
No.11/5, Vasudevan St, Purasaiwakkam,
Chennai - 600 007.

..Plaintiff(s)

Vs

1. G.Lalitha
   Wife of J.Govindarajalu

2. G.Vijayalakshmi
   Daughter of J.Govindarajalu

3. G.Sathish
   Son of J.Govindarajalu

   All Residing At Old Door No.23, New No.41,
   Sundaram Street, Purasaiwakkam,
   Chennai - 600 007.

..Defendant(s)

PRAYER: To grant letters of administration with the Will annexed to her as daughter / Sole beneficiary under the Will of the deceased Mrs.Ramathilagam having effect throughout State of Tamil Nadu.

For Petitioner(s): M/s.K.Ramkumar

For Respondent(s): M/s.G.Sugumaran

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J U D G M E N T

This Testamentary Original Suit arises out of O.P.No.424 of 2014, filed by the plaintiff seeking Letters of Administration with the Will annexed in respect of the last Will and Testament dated 12.03.2001 executed by late Mrs.Ramathilagam.

2. The said Original Petition was converted into a Testamentary Original Suit upon the defendants entering caveat and opposing the grant. The defendants are the legal heirs of late Mr. J. Govindarajalu , the son of the testator and brother of the plaintiff.

3. The plaintiff case is that her mother, Mrs. Ramathilagam, was ordinarily residing at Old Door No.23, New Door No.41, Sundaram Street, Purasaiwakkam, Chennai – 600 007, and died on 30.12.2005 leaving behind her son, J. Govindarajalu, and daughter, C. Dhanalakshmi, the plaintiff herein, as her legal heirs. J.Govindarajalu subsequently died on 12.04.2010 leaving behind his wife, son and daughter, who are the defendants herein.

4. According to the plaintiff, Mrs. Ramathilagam had acquired leasehold rights over an extent of 2,583 sq.ft. under a registered Sale Deed dated

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26.02.1973, registered on the file of the Sub-Registrar, Purasaiwakkam, and had been in possession and enjoyment thereof. During her lifetime, she bequeathed the leasehold rights over the front portion measuring 1,189 sq.ft. in favour of her son, J. Govindarajalu, under a registered Will dated 13.09.2000.

5. The plaintiff further states that Mrs. Ramathilagam thereafter executed her last Will and testament dated 12.03.2001, registered on the file of the Sub-Registrar, Purasaiwakkam, bequeathing in favour of the plaintiff the leasehold rights over the remaining extent of 1,394 sq.ft. situated at the aforesaid address. The Will was attested by B. Selvaraj and G. Gangadharan. No executor was appointed under the Will.

6. It is stated that the schedule-mentioned property belongs to Gangadeeswarar Temple, Purasaiwakkam, and that the deceased possessed only leasehold rights therein. After the death of her mother, when the plaintiff approached the Temple authorities for transfer of the leasehold rights in her name, she was informed that a testamentary grant was required. The plaintiff states that the delay in approaching this Court occurred for the said reason and was neither wilful nor wanton.

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7. The plaintiff has valued the estate likely to come to her hands at Rs.1,00,000/- and has undertaken to duly administer the estate. It is further stated that all the legal heirs and interested persons have been impleaded and that no other proceedings for probate or Letters of Administration in respect of the Will of Mrs. Ramathilagam are pending before any Court. The plaintiff, therefore, seeks grant of Letters of Administration with the Will dated 12.03.2001 annexed thereto, in her favour as the daughter and beneficiary under the said Will.

8. The defendants resisted the suit contending that the plaintiff is not entitled to Letters of Administration in respect of the Will dated 12.03.2001. According to them, the vacant land measuring 1,394 sq.ft. forms part of a larger extent of 2,583 sq.ft. belonging to A/m. Adisolai Amman Temple, under the management of the Executive Officer of A/m. Gangadeeswarar Temple, Purasawalkam, and the deceased Ramathilagam had only leasehold rights over the land. They further contend that the plaintiff is not a lessee under the Temple and that the suit is bad for non-joinder of the Temple.

9. The defendants admit that Ramathilagam had purchased the superstructure together with the leasehold rights under the Sale Deed dated

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26.02.1973. They state that the first defendant, wife of J. Govindarajulu, has been residing in the property from the year 1982, whereas the plaintiff has been living separately and is not in possession of the suit property. They further admit that Ramathilagam executed a registered Will dated 13.09.2000 bequeathing an extent of 1,189 sq.ft. together with the residential building in favour of her son, J. Govindarajulu. On the same day, Ramathilagam and J. Govindarajulu are stated to have executed a registered Release Deed relinquishing their 2/3 share in another property at Vasudevan Pillai Street in favour of the plaintiff.

10. The principal defence is that the subsequent Will dated 12.03.2001, relating to the remaining extent of 1,394 sq.ft., was obtained by the plaintiff by exerting pressure and undue influence upon Ramathilagam. According to the defendants, the said portion was vacant, formed part of the property in their occupation and was enclosed by a compound wall put up by them. They therefore dispute that the Will represented the free and voluntary act of the deceased.

11. The defendants further state that after the death of Ramathilagam on 30.12.2005, the first defendant took over the management of the property and paid substantial arrears of land rent, apart from property tax and water charges,

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and sought transfer of the tenancy in her name. As the Temple did not accede to her request, she instituted O.S.No.1938 of 2015 before the City Civil Court, Chennai. They also state that proceedings have been initiated for grant of Letters of Administration in respect of the earlier Will dated 13.09.2000 executed in favour of J. Govindarajulu. On these grounds, the defendants seek dismissal of the suit.

12. On the basis of the pleadings of both sides, this Court framed the following issues for consideration on 09.03.2022.

(i)Whether the plaintiff is entitled to the grant of Letters of Administration in respect of Temple property belonging to Arulmighu Solai Amman Temple (Public Temple) under the management of Executive Officer of Arulmighu Gangadeeswarar Temple, Purasawalkam, Chennai - 7?

(ii)Whether the Will dated 12.03.2001 was executed by the Testator Mrs. Ramathilagam in the presence of two attesting witnesses while she was in a sound and disposing state of mind and is a true, genuine and valid document as per law?

(iii)Whether the plaintiff being the lessee of the Temple land belonging to the Temple, can maintain the suit without impleading the temple as a party regarding the Will?

(iv)Whether the Will is vitiated by fraud and obtained under coercion? and

(v)To what other relief the plaintiff is entitled to?

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13. On the side of the plaintiff, The plaintiff examined as P.W.2. The 2nd attesting witness S. Gangadharan examined as P.W.1. Exs.P1 to P9 were marked. Ex.P1 is the Aadhaar Card of P.W.1 S. Gangadharan; Ex.P2 is his Driving Licence; Ex.P3 is the attesting signature of P.W.1 in the Will dated 12.03.2001; Ex.P4 is the copy of the Sale Deed dated 26.02.1973 in favour of Ramathilagam; Ex.P5 is the certified copy of the registered Will dated 13.09.2000 executed by Ramathilagam in favour of her son J. Govindarajulu; Ex.P6 is the original registered Will dated 12.03.2001 executed by Ramathilagam in favour of the plaintiff; Ex.P7 is the Death Certificate of Ramathilagam dated 30.12.2005; Ex.P8 is the Death Certificate of J. Govindarajulu dated 12.04.2010; and Ex.P9 is the Legal Heir Certificate of Ramathilagam dated 30.08.2013.

14. On the side of the defendants, Exs.D1 to D6 were marked. Ex.D1 is the certified copy of the Release Deed dated 13.09.2000; Ex.D2 is the photocopy of the Counter Statement in O.S.No.1938 of 2015; Ex.D3 is the Written Statement filed by C. Dhanalakshmi in O.S.No.1938 of 2015; Ex.D4 is the Sale Deed; Ex.D5 is the series of land-rent receipts evidencing payment of rent by the first defendant; and Ex.D6 is the order granting Letters of Administration in O.P.No.659 of 2016 dated 02.05.2017 in respect of the Will dated 13.09.2000.

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15. Learned counsel for the plaintiff submitted that the testatrix, Mrs. Ramathilagam, had acquired leasehold rights over a larger extent of 2,583 sq.ft. under the registered Sale Deed dated 26.02.1973, marked as Ex.P4. Under the registered Will dated 13.09.2000, marked as Ex.P5, she bequeathed the front portion measuring 1,189 sq.ft. with the building thereon in favour of her son, J. Govindarajulu, while retaining the remaining extent of 1,394 sq.ft. The earlier Will was subsequently recognised in O.P.No.659 of 2016, in which Letters of Administration were granted, marked as Ex.D6. Thereafter, the testatrix executed her last registered Will dated 12.03.2001, marked as Ex.P6, bequeathing the leasehold rights over the remaining extent of 1,394 sq.ft. in favour of the plaintiff, her daughter.

16. Learned counsel further submitted that the execution and attestation of Ex.P6 have been duly proved through S. Gangadharan, one of the attesting witnesses, examined as P.W.1. P.W.1 stated that he was a neighbour and family friend of the testatrix and identified her signature on the Will. According to the plaintiff, his evidence sufficiently establishes the due execution and attestation of Ex.P6.

17. It was further submitted that the plaintiff, examined as P.W.2, specifically

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denied the allegation that she had compelled, pressured or exercised undue influence upon the testatrix. Learned counsel also emphasised that Ex.P6 was executed on 12.03.2001, whereas the testatrix died only on 30.12.2005, nearly four years thereafter. It was contended that the defendants had not produced any independent evidence to prove coercion or undue influence and that the evidence of D.W.1 contained admissions indicating that the testatrix was in a sound state of mind and was not suffering from any ailment affecting her testamentary capacity.

18. Learned counsel relied upon ***V. Prabhakara v. Basavaraj K. (Dead) by LRs. & another*, (2021) 11 S.C.R. 377**, and ***Meena Pradhan and Others v. Kamla Pradhan and Another*, (2023) 9 SCC 734**, and submitted that due execution of a Will is established by compliance with Section 63 of the Indian Succession Act and Section 68 of the Indian Evidence Act through examination of at least one attesting witness. It was further submitted that, once one attesting witness satisfactorily proves the Will, examination of the other attesting witness is unnecessary, and that the burden of proving fraud, fabrication or undue influence lies upon the party alleging the same.

19. On the above basis, learned counsel submitted that the evidence of P.W.1

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and P.W.2, read with the admissions of D.W.1, establishes the due and voluntary execution of Ex.P6 and compliance with the statutory requirements. It was therefore prayed that the suit be decreed and Letters of Administration with the Will dated 12.03.2001 annexed be granted in favour of the plaintiff.

20. Learned counsel for the defendants submitted that the evidence of P.W.1, the attesting witness, does not satisfactorily establish the due execution of Ex.P6. It was contended that P.W.1 signed the Will at the Sub-Registrar's Office and that his evidence regarding the actual execution of the Will by the testatrix was not clear and complete. According to the defendants, there is no satisfactory evidence that the contents of the Will were read over to and approved by the testatrix or that Ex.P6 represented her free and conscious testamentary act. The non-examination of the scribe and the Sub-Registrar was also relied upon as a circumstance casting doubt on the genuineness and due execution of the Will.

21. Learned counsel further submitted that the property covered under Ex.P6 belonged to the Temple and remained vacant, though it was subsequently being used for parking vehicles. Reliance was also placed on the evidence of P.W.2 that, though the subject property was vacant temple land, it had been described as a “roof house” in the schedule for the purpose of registration. P.W.2 had also

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admitted that she was not paying and had never paid rent for the vacant land to the Temple. According to the defendants, these admissions did not establish any independent leasehold right in favour of the plaintiff.

22. As regards the plaintiff's knowledge of Ex.P6, learned counsel pointed out that P.W.2 did not remember the time of registration, did not know when Ex.P6 was executed and registered in her favour, and came to know of its contents only about a month thereafter. Though she named Selvaraj and Gangadharan as the attesting witnesses, she stated that she came to know about them only after seeing the Will. She further stated that she did not know the name of the lawyer who drafted Ex.P6, whether the lawyer had come to the house, or where the Will was written; that she had not gone to the Sub-Registrar's Office on the date of registration; and that the contents of the Will were not read over to her. It was submitted that these circumstances, taken cumulatively, constituted suspicious circumstances which the plaintiff, as propounder, was bound to dispel by cogent evidence.

23. With regard to the allegation of pressure, learned counsel referred to the evidence of D.W.1 that the plaintiff had subjected Ramathilagam to pressure and obtained the Will. Though D.W.1 admitted that no documentary evidence had

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been produced in support of that allegation, she claimed to have personally witnessed such conduct. She had also stated that Ramathilagam had otherwise been in good health prior to her death, while adding that she died due to torture.

24. On the legal requirements for proof of a Will, learned counsel relied upon ***H. Venkatachala Iyengar v. B.N. Thimmajamma and Others*, AIR 1959 SC 443; *Sridevi v. Jayaraja Shetty*, AIR 2005 SC 780 : (2005) 2 SCC 784; *Dhannulal and Others v. Ganeshram and Another*, (2015) 12 SCC 301; and *Jayesh Damjibhai Gajjar v. Dineshbhi Damjibhai Gajjar*, 2014 (135) AIC 559**. It was submitted that the propounder must establish due execution and attestation and, where suspicious circumstances are shown, must remove them to the satisfaction of the conscience of the Court. According to the defendants, the evidence of P.W.1 and P.W.2 does not discharge that burden and, therefore, Ex.P6 cannot be accepted as the true, genuine and voluntary last Will of Ramathilagam. On that basis, dismissal of the suit was sought.

25. Issues 1 to 5 :

The plaintiff filed the present proceedings seeking Letters of Administration with the Will annexed in respect of the Will dated 12.03.2001 executed by the testatrix, Mrs. Ramathilagam. The propounder of the Will is the daughter of the testatrix.

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The property described in the Will forms part of a larger extent of property belonging to Arulmigu Adi Solaiamman Temple, a public temple under the management of the Executive Officer of Arulmigu Gangadeeswarar Temple, Purasaiwakkam, Chennai. The subject matter of the Will is only the respective leasehold right over the land belonging to the Temple. The original total extent of the property is 2,583 sq.ft. comprised in R.S.No.1517/1A, situated at Sundaram Pillai Street, Purasaiwakkam, Chennai. The present Will pertains to the rear portion measuring 1,394 sq.ft., situated at Old Door No.23, New Door No.41, Sundaram Street, Purasaiwakkam, Chennai.

26. The testatrix had also executed an earlier registered Will dated 13.09.2000 in respect of the front portion measuring 1,189 sq.ft., together with the residential building thereon, in favour of her son, J. Govindarajulu. Letters of Administration in respect of the said Will dated 13.09.2000 were granted by this Court in O.P.No.659 of 2016 by order dated 13.02.2017. The defendants herein are the wife and children of J. Govindarajulu, the son of the testatrix Ramathilagam.

27. One of the objections raised by the defendants is with regard to the mental capacity of the testatrix to execute the Will. In this regard, on the side of

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the plaintiff/propounder, one of the attesting witnesses, namely, S. Gangadharan, was examined, since the other attesting witness, B. Selvaraj, had died. He was examined as P.W.1. P.W.1 deposed that he knew the testatrix, that he had gone to the Sub-Registrar's Office, that he saw the testatrix sign the Will and that thereafter he signed the Will along with the other attesting witness. Thus, the requirements for proof of the Will under Section 63(c) of the Indian Succession Act, 1925 and Section 68 of the Indian Evidence Act, 1872 stand duly complied with.

28. After execution of the Will, the testatrix continued to carry on her day-to-day affairs in the usual course till her death on 30.12.2005. The earlier Will dated 13.09.2000, executed by the testatrix in favour of her son, J. Govindarajulu, was subsequently granted Letters of Administration on the petition filed by the defendants. Thereafter, the testatrix executed the present Will dated 12.03.2001, wherein she specifically excluded her son from the bequest covered thereunder and referred to the earlier Will executed in his favour in respect of the other portion of the property. In these circumstances, the objection raised by the defendants regarding the mental capacity of the testatrix to execute the Will has no substance.

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29. From the evidence available on record, it is seen that the testatrix had already settled one property at Old No.5, New No.11, Vasudevan Pillai Street, Purasaiwakkam, Chennai, under the Release Deed dated 13.09.2000 in favour of plaintiff and plaintiff also having means in the matrimonial home which is evident from the cross examination of the defendant , this leads the defendant oppose the bequeath made to plaintiff.

30. The defendants further oppose the suit on the ground that, since the land belongs to the Temple under the control of the HR & CE Department, the suit is bad for non-joinder of the Temple as a necessary party. It is obvious that the defendants, while seeking Letters of Administration in O.P.No.659 of 2016 in respect of the earlier Will dated 13.09.2000 concerning another portion of the very same temple land, had also not impleaded the Temple as a party. What is applicable to the defendants would equally apply to the plaintiff. Therefore, the objection raised in this regard is baseless. Further, admittedly, the Temple is the owner of the land and the bequest relates only to the leasehold right. Section 100 of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 applies where a bequest under a Will is made in favour of a religious institution or where the bequest itself creates a religious institution. In the present case, the bequest is not in favour of the Temple, but relates only to the leasehold right held

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by the testatrix. The evidence also shows that, when the plaintiff approached the Temple authorities for transfer of the leasehold rights, she was required to produce the letter of administration from the competent Court. Hence, the contention of the defendants regarding non-joinder of a necessary party does not arise.

31. On the defendants' side, it is also contended that the land is now vacant after removal of the cattle shed and, therefore, the bequest is not valid. Admittedly, the testatrix was a lessee in respect of the entire extent of 2,583 sq.ft. Merely because the cattle shed in a portion of the property was removed, the leasehold right would not, on that ground alone, stand extinguished. However, it is for the lessor to decide whether the lease is to be continued or otherwise. The defendants, who also claim through the very same testatrix in respect of another portion of the leasehold property, stand on the same footing.

32. Further, the defendants stated that, after the demise of the testatrix, they have been paying all the rent and public dues in the respect of the suit property . Even if it is so, the defendants ought to seek recovery from the plaintiff of the amount payable towards her share, but on that ground the bequest made under the Will cannot be denied.

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33. In these circumstances, there is no sustainable objection to the grant. The objections raised by the defendants therefore stand rejected. It is concluded that the Will dated 12.03.2001 has been duly proved and the plaintiff is entitled to the grant of Letters of Administration with the Will annexed.

34. In the result, this suit is decreed and the Letters of Administration with the Will dated 12.03.2001 annexed shall be granted in favour of the plaintiff, limited to the State of Tamil Nadu and in respect of the schedule property. The plaintiff is directed to execute a Security Bond for a sum of Rs.25,000/- (Rupees Twenty Five Thousand only) in favour of the Assistant Registrar (Original Side), High Court, Madras. The plaintiff shall duly administer the estate covered by the grant, file a full and true inventory of the estate within six months from the date of grant of Letters of Administration and render a true and proper account within one year from the date of grant.

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List of witnesses examined on the side of the Plaintiff:

PW1 – S.Gangadharan
PW2 – C.Dhanalakshmi.

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List of documents marked on the side of the Plaintiff:

Ex.P1	photocopy of the Aadhar Card. (compared with the original)
Ex.P2	photocopy of the driving licence. (compared with the original)
Ex.P3	2nd attesting signature found in the Will dated 12.03.2001 executed by Ramathilagam.
Ex.P4	photocopy of the sale deed executed by K.G.Durai Swamy Chetty in favour of Mrs.Ramathilagam dated 26.02.1973. (original is produced, compared and returned to the plaintiff's counsel)
Ex.P5	certified copy of the Will bequeathed in favour of Mr.J.Govindarajalu registered as Doc.No.121/2000 dated 13.09.2000.
Ex.P6	original Will bequeathed in favour of Mrs.C.Dhanalakshmi registered as Doc.No.36/2001 dated 12.03.2001.
Ex.P7	computer generated copy of the death certificate of Mrs.Ramathilagam dated 30.12.2005.
Ex.P8	computer generated copy of the death certificate of Mr.Govindarajalu dated 12.04.2010
Ex.P9	original legal heirship certificate of Mrs.Ramathilagam dated 30.08.2013.

List of witnesses examined on the side of the Defendants:

DW1 – G.Lalitha

List of documents marked on the side of the Defendant:

Ex.D1	certified copy of the Release deed dated 13.09.2000.
Ex.D2	photocopy of the counter statement in O.S. No. 1938 of 2015.
Ex.D3	photocopy of the written statement in O.S. No. 1938 of 2015.
Ex.D4	certified copy of the sale deed dated 14.12.2005.
Ex.D5	(series) (21 Nos.) are the certified copies of the Arulmighu Adhisolaiyamman Temple land rent receipts issued by the temple in the name of Ramathilagammal and the rents are paid by me.

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Ex.D6	certified copy of the probate order in O.P. No. 659 of 2016 dated 02.05.2017.

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DR.A.D.MARIA CLETE, J

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PRE-DELIVERY ORDER MADE IN
T.O.S. No. 12 of 2015

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